

NorthStar / Meridian Merger Review

DOJ Antitrust Division · HSR Second Request

PLATFORM

Casepoint

DOCUMENTS

415 · 282 emails, 92 memos, 41 files

DATE RANGE

November 1, 2023 – May 28, 2024

Training matter. The parties, events and documents are fictional and exist for AA Team review practice.

1 Matter overview

NorthStar Logistics has agreed to acquire Meridian Freight. The DOJ Antitrust Division has issued a Second Request under the Hart-Scott-Rodino Act, requiring NorthStar to produce documents bearing on the deal's effect on competition. We are reviewing NorthStar's documents for that production.

The DOJ's question is whether the merger lessens competition. Read every document for what it says about pricing, competitors and why NorthStar wants the deal.

2 Parties and custodians

ROLE	NAME
CEO	Daniel Reyes
CFO	Karen Whitfield
General Counsel	Monica Feld
COO	Priya Nadkarni
Strategy	Alan Pierce
VP Sales	Tom Bachová
Finance Director	Greg Tanaka
Also collected	HR, Operations and Marketing mailboxes

3 Coding fields on Casepoint

These are the values the coding panel offers. Every document gets all five fields, and all five are graded.

FIELD	VALUES
Responsiveness	Responsive · Not Responsive · Technical Issue
Privilege	Not Privileged · Privileged · Redact (Privilege)
Issues	Select every issue that applies
Production	Produce · Withhold · Redact
Confidentiality	Confidential · Highly Conf. – AEO

4 How to code

IF THE DOCUMENT IS...	RESPONSIVENESS	PRIVILEGE	PRODUCTION	CONFIDENTIALITY
A file that failed processing and cannot be read	Technical Issue	Not Privileged	Withhold	Confidential
Not responsive to any request	Not Responsive	Not Privileged	Withhold	Confidential
Responsive and privileged throughout	Responsive	Privileged	Withhold	See 8
Responsive, with a privileged passage inside ordinary business content	Responsive	Redact (Privilege)	Redact	Confidential
Responsive, not privileged, but contains protected personal or sensitive information (see 9)	Responsive	Not Privileged	Redact	By content (see 8)
Responsive, and none of the above	Responsive	Not Privileged	Produce	See 8

- Production means "does this go out". A document that is not responsive, or cannot be read, is withheld. It is the same rule on every platform in the AA Team program.
- Technical Issue: if a file failed processing, code it Technical Issue, withhold it and route it for re-collection. Never guess substantive coding for a document you cannot read.
- Issues go on responsive documents only. Hot Doc is tagged alongside the substantive issues, never instead of them.

5 Issue tags

#	ISSUE	DEFINITION	WHAT TO LOOK FOR
1	Pricing/Bidding	Pricing, rates and bids.	Rate changes, customer pricing, bid strategy, and any coordination of bids around the deal.
2	Market Share	The competitive landscape.	Market shares, named competitors, lanes and corridors where the two companies compete.
3	Merger Rationale	Why NorthStar wants Meridian.	Deal terms, synergies, integration planning, and statements of purpose.
4	Hot Doc	Documents central to the DOJ's theory of harm.	For example, a document tying the deal to removing a competitor or raising prices. Tag alongside the substantive issues.

6 Attorney and law-firm screen

A name on this list does not make a document privileged. It tells you to read closely for legal advice.

NAME	ROLE	FIRM / DOMAIN
Monica Feld	General Counsel, NorthStar Logistics	In-house
Harlan Crowe	Outside counsel to NorthStar	harlancrowe.com

7 Privilege

- Privileged means legal advice from General Counsel Monica Feld or from outside counsel at Harlan Crowe.
- A lawyer's title does not make a document privileged. An email from the General Counsel about booking a room or ordering lunch carries no legal advice and is not privileged.

- Mixed documents: when a paragraph relaying counsel's advice sits inside ordinary business content, redact that paragraph and produce the rest. Code Privilege as Redact (Privilege) and Production as Redact.

8 Confidentiality

DESIGNATION	USE IT FOR
Highly Conf. – AEO	Pricing and bidding strategy; customer-specific pricing; market-share analyses and competitive intelligence; deal rationale and integration planning; hot documents. Among privileged documents: advice from outside counsel, and attorney work product.
Confidential	Ordinary-course operational reports. Logistics and administration, including the General Counsel's. Any document redacted for employee personal information, even when it concerns integration planning. Documents with a privileged passage redacted. In-house counsel's privileged advice. Every Not Responsive and Technical Issue document.

These categories come from how the matter is graded. The call follows the content, not who sent the document.

9 Redaction

- Employee personal information (Social Security numbers, home addresses) must be redacted before production. The document stays Not Privileged; Production is Redact; Confidentiality is Confidential.
- Privileged passages are redacted with Privilege set to Redact (Privilege), as described in section 7.

10 Matter alerts

Highly Conf. – AEO in a merger review

Pricing strategy, bid strategy and merger rationale are competitively sensitive: a competitor seeing them could use them. Designate those Highly Conf. – AEO. Routine logistics and administration are Confidential.

11 Escalation and the QC standard

STEP	WHO	WHEN
1	Glory or Junior	Your first go-to for every question.
2	Zabron or Simon	If Glory and Junior are unavailable or need backup.
3	Aaron	If it is still unclear after steps 1 and 2.
4	PM / RM	If Aaron has no clear answer, or the question is client-level.

- Never guess silently on a gray area. While you wait for an answer, protect the document: treat it as privileged and do not release it.
- Ask a good question: the document ID; short context (who is writing to whom, about what); your lean and why; and what makes it difficult.

QC TRACK STANDARD

Accuracy	Measured as defects per 1,000 documents. The target is zero. One defect per thousand still scores 95.
Pace	60 documents per hour, sustained, done properly.
Responsiveness	Reply to supervisor messages within 2 minutes while on shift.
The rule that outranks the others	Never trade privilege accuracy for speed.